

those affecting significantly the structure of our government, are not entitled to the same presumption of constitutionality we normally accord legislation. *Moore v. East Cleveland*, 431 U. S. 494, 499 (1977). The burden of justification is reversed; the burden rests upon government, not on the individual whose liberties are affected, to justify the measure. *Abood v. Detroit Board of Education*, 431 U. S. 209, 263-264 (1977) (POWELL, J., concurring in judgment). We recently reaffirmed the standard of review in such cases as one of "exacting scrutiny."

"We long have recognized that significant encroachments on First Amendment rights of the sort that compelled disclosure imposes cannot be justified by a mere showing of some legitimate governmental interest [W]e have required that the subordinating interests of the State must survive exacting scrutiny." *Buckley v. Valeo*, 424 U. S., at 64.

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Constitutional analysis must, of course, take fully into account the nature of the Government's interests underlying challenged legislation. Once those interests are identified, we must then focus on the nature of the individual interests affected by the statute. *Id.*, at 14-15. Finally, we must decide whether the Government's interests are of sufficient weight to subordinate the individual's interests, and, if so, whether the Government has nonetheless employed unnecessarily broad means for achieving its purposes. *Lamont v. Postmaster General*, 381 U. S. 301, 310 (1965) (BRENNAN, J., concurring).

Two governmental interests are asserted as the justification for this statute: to ensure the general efficiency of the Execu-

stringent safeguards, including a warrant, mandated by Title III of the Omnibus Crime Control and Safe Streets Act of 1968. Indeed, the District Court flatly admitted as much. *Ibid.*